

25VECCV03787 25VECCV03787

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-30

Motion: MOTION TO VACATE DISMISSAL AND REINSTATE ACTION

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C07%2F30%2F2026

Source SHA-256: 1cc62b58abf9882efb7bb48079f08a4e5927df0befd1f13aa0da74bf4d9c9872

Case Number: 25VECCV03787 Hearing Date: July 30, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

KARINA KRUEGER,

Plaintiff,

vs.

MELROSE ARDEN, LLC; ACTION

APARTMENTS, L.P.; JACKA LLC; KAMBIZ BOUDAI;
JACK YODAI; and DOES 1 through 50, inclusive, Defendant.

Defendants.

CASE NO: 25VECV03787

[TENTATIVE]

ORDER RE:

MOTION

TO VACATE DISMISSAL AND REINSTATE ACTION

Dept. W

8:30 a.m.

July 27, 2026

NO

PROOF OF SERVICE

[TENTATIVE] ORDER: The Court

CONTINUES this motion to September 14, 2026. Plaintiff is ordered to file proof of service of this motion in accordance with CCP § 1005(b).

Background

Plaintiff

Karina Krueger filed this case on July 9, 2025. Plaintiff alleges thirty-eight causes of action, ranging from negligence, to forgery, to constructive eviction. To date, no Defendants have been served, and no actions have been taken in the case.

On March 13, 2026, this Court dismissed Plaintiff's claim for failure to prosecute.

Now, Plaintiff moves to vacate the Court's dismissal and reinstate this action.

Discussion

Plaintiff moves this Court to vacate its March 13, 2026, order dismissing this case for failure to prosecute. (Mot. to Vacate, p. 3:13-16.)

The crux of Plaintiff's argument is that the dismissal should be vacated because Plaintiff was hospitalized for multiple months due to a mental health condition and thus could not participate in this litigation. (Id. p. 5:6-20.) Plaintiff argues that her medical absence amounts to excusable neglect under CCP § 473(b). (Id. p. 5:1-5.)

However, the Court cannot reach the merits of this motion, because Plaintiff has not filed a proof of service. "Notice of motion must be given

whenever the order sought may affect the rights of an adverse party. In an adversary proceeding where an order may affect the rights of an adverse party, notice must be given to protect the adverse party's right to be heard on the issue as a matter of due process of law." (St. Paul Fire & Marine Ins. Co. v. Superior Court (1984) 156 Cal.App.3d 82, 85 [citing McDonald v. Severy (1936) 6 Cal.2d 629, 631].)

Here, while Defendants have not yet been served or appeared in this motion, their rights are still implicated by the reversal of the dismissal in this case.

For these reasons, the Court CONTINUES this motion to allow Plaintiff to properly serve Defendants with notice of this motion in accordance with CCP § 1005(b).

Conclusion

The Court CONTINUES this motion to September 14, 2026. Plaintiff is ordered to file proof of service of this motion in accordance with CCP § 1005(b).

IT
IS SO ORDERED, Plaintiff TO GIVE NOTICE.

July 27, 2026

Judge of the Superior Court